

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.
CONDITIONAL EXCLUSION – ROOFING OPERATIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusion is added to Paragraph 2. **Exclusions** of Section I – Coverage A – Bodily Injury And Property Damage Liability and Paragraph 2. **Exclusions** of Section I – Coverage B – Personal And Advertising Injury Liability:

2. Exclusions

This coverage part does not apply to:

“Bodily injury”, “property damage” or “personal and advertising injury” arising out of and in any way related to any liability for:

- (1) The installation, repair or replacement of any roof including the tear down of any existing roof or portion of any roof; or
- (2) Any other work performed upon any roof, including the installation, repair or removal of any materials or products from or on any roof or any portion thereof.

This exclusion shall not apply to any roofing work described above performed on behalf of the Named Insured by any sub-contractor provided the following conditions are completely satisfied at the time of commencement of any work by the sub-contractor and continue until completion of all of the work by the sub-contractor:

- (1) Procure and maintain a written agreement with each of your independent contractors for services performed or completed during the policy period that indemnifies and holds you harmless from liability for "bodily injury" or "property damage" sustained by a third person, arising out of the work of that independent contractor to the maximum extent allowable by state laws; and
- (2) Procure, maintain and provide upon request Certificates of Insurance from each of your independent contractors effective during the entire period of that independent contractor's work for you evidencing the following coverages and limits of liability:
 - (a) Commercial General Liability coverage with limits of not less than:
 - (i) \$1,000,000 Combined Single Limit each occurrence;
 - (ii) \$1,000,000 General Aggregate; and
 - (iii) \$1,000,000 Products / Completed Operations Aggregate;
 - (b) An endorsement on the Commercial General Liability policy adding you as an additional insured for all claims or “suits” arising out of the independent contractor's work; and
 - (c) Worker's Compensation coverage as required by the jurisdiction in which services are performed.

In the event the exclusion does not apply because all of the conditions listed in Paragraphs (1) and (2) are met, this insurance will be excess over any valid and collectible insurance available to the Named Insured from the sub-contract.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED